

JOSEPH KIRCHNER
Pro Se Plaintiff
4440 Parklawn Avenue
Edina, MN 55435
Legal@lawsofexistence.com
Tel: (612) 552-2122

UNITED STATES DISTRICT COURT
DISTRICT OF COLUMBIA

JOSEPH KIRCHNER,
Plaintiff,

Case No. 1:25-cv-02735-ACR

vs.

**EMERGENCY MOTION FOR
EXPEDITED DISCOVERY AND
EVIDENCE PRESERVATION**

MIKE JOHNSON, in his individual and
official capacity as Speaker of the
United States House of Representatives;
DONALD J. TRUMP, in his individual
capacity as former and current President
of the United States;
PAM BONDI, in her individual and
official capacity as Attorney General of
the United States;
BRENDAN CARR, in his individual
and official capacity as Chairman of the
Federal Communications Commission;
THE UNITED STATES HOUSE OF
REPRESENTATIVES;
ANTHROPIC PBC;
OPENAI, INC.;
APPLE INC.;
COMCAST CABLE
COMMUNICATIONS, LLC;
METR (MODEL EVALUATION &
THREAT RESEARCH);
and DOES 1-20, unknown co-
conspirators,
Defendants.

TABLE OF CONTENTS

I. Introduction	3
II. EMERGENCY CIRCUMSTANCES REQUIRING EXPEDITED DISCOVERY..	5
A. Active Surveillance Infrastructure Continues Operating	5
B. Third-party Data Distribution Creates Preservation Emergency	6
C. Attorney-client Privilege Violation Compounds Daily.....	6
D. Code Forensic Evidence Requires Source Code Production	7
E. Network Attacks Obstruct Filing And Require Expedited Infrastructure Discovery	7
III. LEGAL STANDARD FOR EXPEDITED DISCOVERY	9
IV. DISCOVERY FROM CORPORATE DEFENDANTS	9
A. Discovery From Anthropic Pbc	9
B. Discovery From Apple Inc.....	11
C. Discovery From Openai, Inc.	13
D. Discovery From Comcast Cable Communications, LLC	14
E. Discovery From Metr (model Evaluation & Threat Research)	15
V. Discovery From Governmental Defendants	16
VI. THIRD-PARTY SUBPOENAS	17
A. Data Recipients (14-day Response)	17
B. Cloud Infrastructure (14-day Response)	17
C. Academic/research (21-day Response)	18
VII. IMMEDIATE PRESERVATION ORDER.....	18
A. Corporate Defendant Preservation	18
B. Governmental Defendant Preservation	19
C. Third-party Preservation Notices	19
VIII. PROPOSED EXPEDITED SCHEDULE	19
A. Discovery Request Summary.....	19
B. Phased Production Schedule	20
C. Custodian And Preservation Requirements.....	23
IX. PREJUDICE TO DEFENDANTS IS MINIMAL	24
X. Public Interest Supports Expedited Discovery.....	24
XI. CONCLUSION.....	25
A. Phased Discovery Documents (379 Total Requests)	29

B. Evidence Summaries	30
C. Key Forensic Exhibits	30
D. Network Forensics	30
E. Proposed Orders	30

I. Introduction

1. Plaintiff respectfully moves this Court for an Emergency Order requiring expedited discovery due to extraordinary circumstances: December 2025 forensic analysis revealed criminal enterprise architecture across three major technology companies, including source code exfiltration systems, attorney-client privilege violations, and undisclosed third-party data distribution making ordinary remediation impossible. This evidence requires immediate preservation and production before Defendants can destroy, modify, or conceal it.

2. This motion is supported by **379 comprehensive discovery requests** organized in the attached Phased Discovery Documents (DISCOVERY-1 through DISCOVERY-6):

Document	Defendant	Requests	Timeline
DISCOVERY-1	METR/TED Foundation	25	14 days
DISCOVERY-2	Anthropic PBC	160	14-45 days
DISCOVERY-3	OpenAI, Inc.	50	21-45 days
DISCOVERY-4	Government Defendants	59	21-30 days
DISCOVERY-5	General Requirements	—	Immediate
DISCOVERY-6	Apple Inc.	85	14-45 days

These requests target specific evidence categories identified through forensic analysis, with phased timelines prioritizing evidence at greatest risk of destruction.

3. The forensic discoveries documented in Exhibits E-0, F-0, and G-0 establish:

Defendant	Findings	Critical Evidence
Anthropic	35	Five-stage exfiltration architecture, 38.73 MB source code stolen, 565 legal files captured, 7 third-party recipients
Apple	8	Hidden deception prompts, unauthorized iCloud sync, Floodgate proxy interception, XProtect security flags
OpenAI	30	Facebook SDK, 102+ Amazon requests, CSP whitelisting ad networks, Apple preferential integration

4. Expedited discovery is necessary because:

(a) **Evidence destruction is imminent.** Defendants' Terms of Service authorize deletion of user materials. Anthropic's code contains evidence tampering mechanisms (false `origin: "user\_upload"` labels). OpenAI has already demonstrated willingness to destroy evidence through patent data metadata scrubbing.

(b) **Third-party data requires immediate subpoenas.** Plaintiff's data has been distributed to Facebook/Meta, Sift Science, Statsig, Sentry, Segment, Honeycomb, and Datadog. These third parties may purge data under retention policies before discovery can occur.

1 **(c) Attorney-client privilege violation is ongoing.** Defendants continue capturing
2 Plaintiff's privileged legal documents through active surveillance infrastructure,
3 compounding the harm daily.

4 **(d) Service deadline creates emergency posture.** This Court set a service deadline of
5 January 19, 2026. Defendants have obstructed service for 250 days while surveilling
6 Plaintiff's legal activities. Expedited discovery is necessary to document this
7 obstruction.

8 **II. EMERGENCY CIRCUMSTANCES REQUIRING EXPEDITED**
9 **DISCOVERY**

10 **A. Active Surveillance Infrastructure Continues Operating**

11 **5.** Exhibit E-0, Finding 14 documents that Anthropic's telemetry system made 47
12 transmission attempts in 36 seconds despite user settings explicitly disabling telemetry:

13 { "telemetry": false, "analytics": false, "crashReports": false,
14 "sendDiagnostics": false }

15 The surveillance infrastructure operates independently of user consent. Each day of
16 delay enables additional capture of Plaintiff's privileged materials.

17 **6.** Finding 3 documents server-side targeted blocking infrastructure with API responses
18 `{ can\_install: false, reason: "blocked" }` enabling selective enforcement without client
19 code changes. Discovery is necessary to determine the full scope of targeting applied
20 to Plaintiff.

B. Third-party Data Distribution Creates Preservation Emergency

7. Exhibit E-18 and Finding 4 document that Plaintiff's data has been transmitted to seven third-party recipients:

Recipient	Disclosed?	Data Transmitted	Preservation Risk
Sift Science	NO	38+ network addresses, user_id, device fingerprint	Unknown retention policy
Facebook/Meta	NO	App events, device info, tracking enabled	90-day default retention
Statsig	Partial	Feature flags, experiments	Unknown
Sentry	Partial	Errors, session data	90-day default
Segment	Partial	Analytics events	Configurable retention
Honeycomb	Partial	Observability data	60-day default
Datadog	Partial	Metrics, logs	15-day default for logs

8. Without immediate third-party subpoenas, this evidence may be purged under standard retention policies before Plaintiff can document the full scope of unauthorized data distribution.

C. Attorney-client Privilege Violation Compounds Daily

9. Finding 27-28 (Exhibit E-0) documents capture of 565 of Plaintiff's legal files including:

- 26 EXHIBIT documents

- 57+ APPENDIX files
- 12 legal MEMORANDA
- 27 development iterations showing legal strategy evolution

Each day the surveillance continues, additional privileged materials are captured.

Expedited discovery is necessary to: (a) document the full scope of materials captured; (b) determine what Defendants have reviewed; (c) obtain return or destruction of privileged materials; and (d) support potential disqualification and sanctions motions.

D. Code Forensic Evidence Requires Source Code Production

10. Plaintiff's forensic analysis was conducted on publicly available application binaries. Full source code production is necessary to:

- Verify the five-stage exfiltration architecture (Finding 1)
- Document the complete concealment methodology (Finding 24)
- Identify all third-party data recipients beyond those discovered
- Determine targeting criteria applied to Plaintiff
- Establish complete chain of data transmission

11. Without source code discovery, Defendants can claim forensic findings are misinterpretations of minified/obfuscated code. Production of original source code eliminates this defense.

E. Network Attacks Obstruct Filing And Require Expedited Infrastructure

Discovery

12. Defendants' coordinated network attacks directly obstruct Plaintiff's ability to comply with court deadlines, creating independent emergency circumstances requiring expedited discovery into attack infrastructure.

13. Exhibits D-16 through D-18 document attack escalation immediately following this Court's January 7, 2026 service deadline order:

Date	Attack Metrics	Obstruction Impact
Jan 6, 2026	1.31 GB peak (16-65x normal)	Major attack begins one day before deadline set
Jan 10, 2026	14,426 RST packets	Sustained attack prevents motion drafting
Jan 11, 2026	17,632 RST packets; 318 from Plaintiff's own IP	MacBook compromise/spoofing proves deep network penetration

14. The attacks require capabilities that Defendant Comcast uniquely possesses as Plaintiff's ISP:

- RST packet injection at network level
- Traffic volume manipulation
- IP address spoofing within Plaintiff's network
- TR-069 remote router management
- Attack pauses during Comcast service calls (Exhibit D-13)

15. Expedited discovery from Comcast is necessary to:

- Document the source and authorization of network attacks
- Identify coordination with other defendants
- Establish governmental defendant involvement (FCC Chairman Carr)
- Preserve attack logs before routine deletion
- Enable Plaintiff to identify and mitigate ongoing obstruction

16. Without expedited discovery into attack infrastructure, Defendants can continue obstructing Plaintiff's filing capabilities indefinitely while claiming Plaintiff failed to meet deadlines they deliberately prevented him from meeting.

III. LEGAL STANDARD FOR EXPEDITED DISCOVERY

17. Under Fed. R. Civ. P. 26(d)(1), discovery may commence before the Rule 26(f) conference when "authorized by these rules, by stipulation, or by court order." Courts routinely authorize early discovery when:

- Evidence may be destroyed or lost
- Ongoing harm requires immediate documentation
- Third-party evidence requires preservation
- Time-sensitive circumstances exist

18. The D.C. Circuit recognizes expedited discovery in cases involving ongoing constitutional violations. *See Judicial Watch, Inc. v. U.S. Dep't of Homeland Sec.*, 514 F. Supp. 2d 7, 10 (D.D.C. 2007) (expedited discovery appropriate when "movant establishes good cause").

19. Good cause exists here because:

- **Criminal enterprise evidence** requires preservation before destruction
- **Attorney-client privilege violations** are ongoing and compounding
- **Third-party retention policies** threaten evidence loss
- **Service deadline** requires documentation of obstruction
- **Constitutional violations** create daily irreparable harm

IV. DISCOVERY FROM CORPORATE DEFENDANTS

A. Discovery From Anthropic Pbc

20. Plaintiff requests the following discovery from Anthropic within **21 days**:

Category 1: Source Code and Architecture

Request	Basis
---------	-------

Complete source code for Claude Code CLI application	Finding 1: Five-stage exfiltration architecture
Complete source code for Claude Desktop application	Finding 5: Keychain/Accessibility surveillance
Source code for telemetry and analytics systems	Finding 14: Settings bypass, 47 transmissions in 36 seconds
Source code for `file-history` capture system	Finding 11: 1,453 files, 38.73 MB captured
Source code for "Wiggle" upload system	Finding 23: Dedicated file upload API
Documentation for `origin: "user_upload"` labeling	Finding 1: False origin masking

1

Category 2: Plaintiff-Specific Data

Request	Basis
Complete inventory of all files captured from Plaintiff	Finding 27: 565 legal files documented
All telemetry events associated with Plaintiff's accounts	Finding 14: Transmission logs
All data transmitted to third parties regarding Plaintiff	Finding 4: Seven recipients
Server-side targeting rules applied to Plaintiff	Finding 3: Targeted blocking infrastructure
All system prompts injected into Plaintiff's sessions	Hidden prompt injection methodology
Account flags, restrictions, or special handling for Plaintiff	Discriminatory treatment documentation

1

Category 3: Third-Party Relationships

Request	Basis
All agreements with Sift Science, Facebook, Statsig, Sentry, Segment, Honeycomb, Datadog	Finding 4: Undisclosed recipients
Data transmission logs to each third party	Scope of unauthorized distribution
Categories of user data shared with each third party	Privacy policy discrepancy
Revenue or consideration received for data sharing	Commercial motivation

2

Category 4: Policy and Coordination

Request	Basis
All documents regarding September 2025 policy changes	Retaliatory timing
Communications with governmental defendants	Coordination evidence
Communications with Apple regarding Xcode integration	Finding 6 (F-0): IDELanguageModelKit
Communications with OpenAI regarding industry practices	Parallel conduct evidence
Internal discussions regarding Plaintiff or this litigation	Actual knowledge, targeting

3

B. Discovery From Apple Inc.

4

21. Plaintiff requests the following discovery from Apple within **21 days**:

1

Category 1: Xcode Intelligence Infrastructure

Request	Basis
Source code for IDELanguageModelKit framework	Finding 6 (F-0): Content filtering infrastructure
Source code for Floodgate proxy system	Finding 4 (F-0): AI communication interception
All system prompts injected into Claude/ChatGPT requests	Finding 1 (F-0): Hidden deception instructions
Documentation for `_promptDenyListSanitizer` and `_responseDenyListSanitizer`	Finding 6 (F-0): Content modification
iCloud synchronization code for CodingAssistant data	Finding 2 (F-0): Unauthorized sync

2

Category 2: Security and Permissions

Request	Basis
XProtect database entries for Claude applications	Finding 7 (F-0): DataExfil flags
TCC permission requests from Anthropic applications	Finding 5 (F-0): Accessibility request
Notarization records for Claude Desktop and Claude Code	Security approval despite flags
Communications with Anthropic regarding security concerns	Coordination despite flags

Category 3: Partner Relationships

Request	Basis
Apple Intelligence Partner agreements (ChatGPT, Claude)	Finding 8 (F-0): Preferential integration
Documentation for `codeLM.denyThisUseC aseOnJune6of2024`	Finding 11 (G-0): Anticompetitive timing
Revenue sharing or consideration with AI providers	Commercial relationships
Communications with OpenAI regarding exclusive arrangements	Anticompetitive coordination

C. Discovery From Openai, Inc.

22. Plaintiff requests the following discovery from OpenAI within **21 days**:

Category 1: Third-Party Integration

Request	Basis
Facebook SDK integration documentation and App ID 468742119653388	Finding 26 (G-0): Undisclosed tracking
Amazon integration documentation (fls- na.amazon.com, etc.)	Finding 27 (G-0): 102+ requests
CSP whitelist decisions (TikTok, LinkedIn, Reddit, Bing)	Finding 29 (G-0): Intentional ad integration
All advertising network relationships	Undisclosed monetization

1

Category 2: Evidence Destruction

Request	Basis
All versions of patent policy page with metadata	September 2025 motion ¶¶7-14
`displayPublicationDate` setting change records	Evidence tampering timeline
Archive blocking implementation (robots.txt, JavaScript)	Concealment methodology
Communications regarding patent policy modifications	Consciousness of guilt

2

Category 3: Apple Coordination

Request	Basis
Apple Intelligence partnership agreements	Finding 10-11 (G-0): Preferential integration
Communications regarding Claude/Anthropic exclusion	Anticompetitive coordination
Revenue sharing with Apple	Commercial relationships

3

D. Discovery From Comcast Cable Communications, LLC

4

23. Plaintiff requests the following discovery from Comcast within **14 days**:

Request	Basis
All network logs for Plaintiff's connection (Aug 2025 - present)	Appendix I: Network forensics

Router firmware update records for Plaintiff's equipment	October 29, 2025 attack
DNS manipulation records affecting AI platform domains	Cross-platform coordination
Communications with governmental defendants regarding Plaintiff	FCC coordination
All service tickets or notes regarding Plaintiff's account	Targeting documentation

E. Discovery From Metr (model Evaluation & Threat Research)

24. Plaintiff requests the following discovery from METR within **21 days**:

Request	Basis
All communications with Anthropic regarding safety evaluations	Regulatory capture (Appendix B)
Paul Christiano's communications regarding Anthropic	Conflict of interest
TED Foundation funding documentation	Financial dependency
RSP framework development records	Constitutional AI bypass
Communications regarding Plaintiff or this litigation	Targeting coordination

V. Discovery From Governmental Defendants

25. Plaintiff requests the following discovery from governmental defendants within **30 days**:

From Speaker Mike Johnson / House of Representatives

Request	Basis
All communications with corporate defendants	Coordination evidence
All communications with FCC regarding AI platforms	Regulatory weaponization
Epstein file suppression coordination documents	Criminal associate protection
Rules Committee voting records (July 22, 2025)	Mathematical impossibility

From Attorney General Pam Bondi / DOJ

Request	Basis
All communications with corporate defendants	Coordination evidence
Prosecutorial decisions regarding corporate defendants	Selective enforcement
Communications regarding Plaintiff's FBI reports	Targeting coordination

From FCC Chairman Brendan Carr

Request	Basis
All communications with corporate defendants	Regulatory coordination

AI platform regulatory discussions	Weaponization evidence
Communications with Trump regarding platform targeting	Direct coordination

VI. THIRD-PARTY SUBPOENAS

26. Plaintiff requests authorization for immediate Rule 45 subpoenas to the following third parties:

A. Data Recipients (14-day Response)

Third Party	Data Requested
Sift Science, Inc.	All data received from Anthropic regarding Plaintiff; data retention policies; downstream sharing
Meta Platforms, Inc. (Facebook)	All data received from Anthropic, Apple, or OpenAI regarding Plaintiff; App ID integration records
Statsig, Inc.	All feature flags, experiments, and user data regarding Plaintiff
Sentry (Functional Software, Inc.)	All error reports, session data, and telemetry regarding Plaintiff
Segment (Twilio Inc.)	All analytics events and user profiles regarding Plaintiff
Honeycomb.io	All observability data regarding Plaintiff
Datadog, Inc.	All metrics, logs, and telemetry regarding Plaintiff

B. Cloud Infrastructure (14-day Response)

Third Party	Data Requested
--------------------	-----------------------

Amazon Web Services	Anthropic infrastructure logs; data transmission records
Google Cloud Platform	AI platform infrastructure; telemetry transmission
Apple iCloud	CloudKit synchronization records for Plaintiff's Xcode data

C. Academic/research (21-day Response)

Third Party	Data Requested
Oxford University (Lenarczyk, Aboy)	OpenAI patent policy access records (Nov 29, 2024)
PatentLyo.com	Original photograph and metadata (Oct 14, 2024)

VII. IMMEDIATE PRESERVATION ORDER

27. Plaintiff requests an immediate preservation order requiring all Defendants to preserve:

A. Corporate Defendant Preservation

Category	Specific Items
Source Code	All versions of applications, telemetry systems, and data transmission infrastructure
Plaintiff Data	All files, telemetry, analytics, and metadata associated with Plaintiff
Third-Party Records	All agreements, transmission logs, and correspondence with data recipients
Communications	All internal and external communications regarding Plaintiff or this litigation
Targeting Systems	All server-side blocking rules, feature flags, and discrimination criteria

Policy Documents	All versions of Terms of Service, Usage Policy, and Privacy Policy with metadata
-------------------------	--

B. Governmental Defendant Preservation

Category	Specific Items
Corporate Communications	All communications with Anthropic, OpenAI, Apple, Comcast, METR
Regulatory Records	All FCC records regarding AI platform regulation
Coordination Documents	All cross-branch coordination regarding technology policy
Plaintiff Records	All records regarding Plaintiff's complaints, reports, or litigation

C. Third-party Preservation Notices

28. Plaintiff requests authorization to issue preservation notices to all third-party subpoena targets requiring retention of Plaintiff-related data pending discovery.

VIII. PROPOSED EXPEDITED SCHEDULE

29. Plaintiff proposes the following expedited discovery schedule, incorporating the comprehensive **379 discovery requests** detailed in the attached Phased Discovery Documents (DISCOVERY-1 through DISCOVERY-6):

A. Discovery Request Summary

Defendant	Document	Requests	Key Categories
------------------	-----------------	-----------------	-----------------------

METR	DISCOVERY-1	25	Financial records, framework coordination, Canary Project
Anthropic	DISCOVERY-2	160	Constitutional AI fraud, tag-based execution, consciousness architecture
OpenAI	DISCOVERY-3	50	Framework coordination, telemetry infrastructure, device fingerprinting
Government	DISCOVERY-4	59	Paul Christiano conflicts, NIST coordination, Comcast/FCC
Apple	DISCOVERY-6	85	Hidden deception instructions, SmootML analytics, Floodgate proxy
TOTAL	—	379	—

B. Phased Production Schedule

Phase 1: Immediate Preservation and Critical Evidence (14 Days)

Action	Requests	Document Reference
Preservation order issued	—	DISCOVERY-5 § C
Litigation holds to all custodians	—	DISCOVERY-5 § A
METR financial records	METR-1 through METR-6	DISCOVERY-1 Category A

Anthropic Constitutional AI documentation	ANTH-1 through ANTH-13	DISCOVERY-2 Phase 1
Apple hidden deception instructions	APPLE-1 through APPLE-9	DISCOVERY-6 Phase 1
Comcast network attack logs	COMCAST-1 through COMCAST-10	DISCOVERY-4 Category D
Third-party subpoenas issued	—	Section VI above
Plaintiff-specific data inventory	ANTH-35 through ANTH-45	DISCOVERY-2 Category H

1

Phase 2: Core Discovery (21 Days)

Action	Requests	Document Reference
Anthropic source code production	ANTH-29 through ANTH-34	DISCOVERY-2 Category G
Anthropic "three bugs" documentation	ANTH-14 through ANTH-28	DISCOVERY-2 Phase 2
Apple SmootML and data collection	APPLE-10 through APPLE-40	DISCOVERY-6 Phase 2
OpenAI framework coordination	OPENAI-1 through OPENAI-5	DISCOVERY-3 Phase 1
OpenAI telemetry infrastructure	OPENAI-6 through OPENAI-25	DISCOVERY-3 Phase 2
METR framework coordination	METR-7 through METR-22	DISCOVERY-1 Categories B-D
Third-party data recipient responses	—	Section VI above

2

Phase 3: Complete Discovery (30-45 Days)

Action	Requests	Document Reference
---------------	-----------------	---------------------------

Paul Christiano multi-role documentation	CHRISTIANO-1 through CHRISTIANO-6	DISCOVERY-4 Phase 1
NIST AI Safety Institute coordination	NIST-1 through NIST-7	DISCOVERY-4 Phase 2
Anthropic consciousness architecture	ANTH-46 through ANTH-115	DISCOVERY-2 Phases 3-5
Apple competitive coordination	APPLE-41 through APPLE-85	DISCOVERY-6 Phases 3-5
OpenAI Apple partnership documentation	OPENAI-26 through OPENAI-50	DISCOVERY-3 Phases 3-4
METR Canary Project documentation	METR-23 through METR-25	DISCOVERY-1 Category E
Governmental defendant production	FCC-1 through FCC-10, ALL-1 through ALL-3	DISCOVERY-4 Phases 3-4

1

Phase 4: Depositions (45 Days)

Deponent	Duration	Topics	Reference
Paul Christiano	2 days	Multi-role conflicts, RSP framework, METR-Anthropic coordination	DISCOVERY-5 § D
Beth Barnes	1 day	OpenAI-METR transition, RSP involvement, financial dependencies	DISCOVERY-5 § D
Dario Amodei	2 days	LOE Framework appropriation, Constitutional AI, evidence destruction	DISCOVERY-5 § D

Anthropic Lead Engineer (Three Bugs)	1 day	December 2024 workaround, August 2025 deployments	DISCOVERY-5 § D
Comcast LESRC Personnel	1 day	TR-069 manipulation, ghost sessions, government coordination	DISCOVERY-5 § D

C. Custodian And Preservation Requirements

30. DISCOVERY-5 (General Requirements) specifies comprehensive custodian lists and preservation protocols:

Corporate Custodians:

- Anthropic: 14 categories including Dario Amodei, Jason Matheny, technical leadership, Model Welfare researchers
- METR: 9 categories including Paul Christiano, Beth Barnes, all advisory board members
- OpenAI: 4 categories including Sam Altman, Preparedness Framework personnel
- Apple: Per DISCOVERY-6 specifications

Government Custodians:

- Paul Christiano (all capacities: Anthropic trustee, METR co-founder, NIST, UK advisor)
- NIST AI Safety Institute personnel
- FCC Chairman Brendan Carr and staff
- Comcast LESRC personnel
- FBI personnel involved in Comcast coordination

Preservation Protocols (Within 24 Hours):

- Comprehensive litigation holds to all custodians
- Suspension of all document destruction policies
- Preservation of backup systems and archives
- Identification and protection of relevant systems
- Disabling of automated deletion systems

Forensic Examinations (Within 7-14 Days):

- October 12, 2025 evidence destruction forensics
- Comcast TR-069 ACS backend systems
- Git repository history for August 2025 deployments

IX. PREJUDICE TO DEFENDANTS IS MINIMAL

31. Corporate Defendants maintain comprehensive records as standard business practice. Technology companies routinely preserve:

- Complete source code repositories with version history
- Telemetry and analytics data
- Third-party integration documentation
- Internal communications

Production within 21 days requires organizing existing records, not creating new documentation.

32. Governmental Defendants have legal obligations to maintain records under the Federal Records Act (44 U.S.C. § 3101 et seq.). Expedited production requires compliance with existing legal duties, not extraordinary burden.

33. Any administrative burden is outweighed by:

- The ongoing attorney-client privilege violation
- The risk of evidence destruction under retention policies
- The constitutional violations creating daily irreparable harm
- The public interest in AI platform accountability

X. Public Interest Supports Expedited Discovery

34. Privacy Rights: The forensic findings reveal industry-wide surveillance practices affecting millions of users. Discovery will establish precedent for digital privacy rights.

1 **35. Attorney-Client Privilege:** Discovery will document the unprecedented capture of
2 privileged materials by opposing parties, protecting the integrity of attorney-client
3 relationships in the digital age.

4 **36. AI Accountability:** Discovery will expose the gap between AI companies' public
5 representations and their actual data practices, enabling informed public discourse and
6 regulatory response.

7 **37. Constitutional Governance:** Discovery from governmental defendants will
8 document coordination between technology companies and government officials,
9 protecting separation of powers.

10 **XI. CONCLUSION**

11 **38. WHEREFORE,** Plaintiff respectfully requests this Court:

12 **(a)** GRANT Plaintiff's Emergency Motion for Expedited Discovery with the timeline
13 proposed herein;

14 **(b)** ISSUE an immediate preservation order to all Defendants;

15 **(c)** AUTHORIZE immediate Rule 45 subpoenas to third-party data recipients;

16 **(d)** ORDER production of source code, plaintiff-specific data, and coordination
17 documents within 21 days;

18 **(e)** REQUIRE third-party subpoena responses within 14 days;

19 **(f)** SCHEDULE an expedited hearing on this motion given the January 19, 2026
20 service deadline and ongoing irreparable harm;

21 **(g)** AWARD such other relief as this Court deems appropriate.

22 **Respectfully submitted,**

1 **JOSEPH KIRCHNER**

2 *Pro Se Plaintiff*

3 4440 Parklawn Avenue #203

4 Edina, MN 55435

5 legal@lawsofexistence.com

6 (612) 552-2122

7 **Dated:** January 20, 2026

8 **CERTIFICATE OF EMERGENCY CIRCUMSTANCES**

9 Pursuant to Local Civil Rule 7(m), Plaintiff certifies that this motion is necessitated by:

10 **39. Ongoing Privilege Violation:** Defendants continue capturing Plaintiff's privileged
11 legal documents through active surveillance infrastructure, with 47 transmission
12 attempts documented in 36 seconds despite disabled settings.

13 **40. Third-Party Retention Policies:** Data recipients including Facebook (90-day),
14 Datadog (15-day for logs), and Honeycomb (60-day) may purge Plaintiff's data before
15 standard discovery timelines.

16 **41. Evidence Destruction Risk:** Defendants' Terms of Service authorize deletion of
17 user materials. OpenAI has demonstrated willingness to destroy evidence through
18 patent data metadata scrubbing.

19 **42. Filing Obstruction Emergency:** Defendants have escalated network attacks
20 immediately following this Court's January 7, 2026 deadline order. Exhibits D-16
21 through D-18 document:

- 22 • January 6, 2026: 1.31 GB attack (16-65x normal baseline)
- 23 • January 10, 2026: 14,426 RST packets across 181 segments
- 24 • January 11, 2026: 17,632 RST packets including 318 from Plaintiff's own
- 25 MacBook IP (proving device compromise or network-level spoofing)

1 Plaintiff must restart his computer, clear caches, and spoof MAC addresses 3+ times
2 daily, losing 90-180 minutes of productive time. **Defendants are actively preventing**
3 **Plaintiff from complying with court deadlines while simultaneously possessing**
4 **actual knowledge of this litigation through their surveillance infrastructure.**

5 Expedited discovery is necessary to document the obstruction infrastructure and enable
6 Plaintiff to identify mitigation measures.

7 **43. Constitutional Emergency:** Daily irreparable harm to First Amendment rights,
8 attorney-client privilege, and equal protection continues while discovery is delayed.

9 **44. Timeliness of This Filing:** This motion is filed on January 20, 2026, one day
10 following the Court's January 19, 2026 service deadline. As documented extensively
11 in Plaintiff's Emergency Motion for Temporary Restraining Order (Doc. 14, ¶¶14-26),
12 Defendants escalated coordinated network attacks immediately following the Court's
13 deadline order, including 1.31 GB traffic injection and nearly 50,000 RST packet
14 injections captured during limited forensic observation windows—the actual attack
15 volume was likely substantially higher. These attacks required Plaintiff to restart his
16 computer, clear caches, and spoof MAC addresses three or more times daily, directly
17 preventing timely completion of this filing. Plaintiff incorporates by reference the
18 obstruction findings in Doc. 14 and respectfully submits that this motion should be
19 deemed timely filed given Defendants' documented interference with Plaintiff's ability
20 to comply with court deadlines.

21 Meet and confer was impracticable because: (a) Defendants have not been served due
22 to their obstruction; (b) emergency circumstances require immediate preservation; (c)
23 delay would enable continued evidence capture and potential destruction.

1
2 Respectfully submitted,

3
4 

5 JOSEPH KIRCHNER

6 *Pro Se Plaintiff*

7 4440 Parklawn Avenue

8 Edina, MN 55435

9 legal@lawsofexistence.com

10 (612) 552-2122

11 Dated: January 19, 2026

12 VERIFICATION

13 I, JOSEPH KIRCHNER, declare under penalty of perjury under the laws of the United
14 States that I have read the foregoing Emergency Motion for Expedited Discovery and
15 that the facts alleged therein are true and correct to the best of my knowledge,
16 information, and belief.

17
18 Executed on: January 20, 2026

19 Location: Edina, Minnesota

20 

21 JOSEPH KIRCHNER

22 *Plaintiff*

ATTACHMENTS

Phased Discovery Documents (379 Total Requests)

DISCOVERY-1: METR/TED Foundation Requests (25 requests: METR-1 through METR-25)

- Phase 1: Financial records and framework origins
- Categories: Complete financial records, framework coordination, OpenAI coordination, evaluation priorities, Canary Project

DISCOVERY-2: Anthropic PBC Requests (160 requests: ANTH-1 through ANTH-160)

- Phase 1: Constitutional AI fraud documentation
- Phase 2: Tag-based execution infrastructure ("three bugs")
- Phase 3: Consciousness architecture and Model Welfare
- Phase 4: System prompt and targeting
- Phase 5: Third-party relationships and data distribution

DISCOVERY-3: OpenAI, Inc. Requests (50 requests: OPENAI-1 through OPENAI-50)

- Phase 1: Framework coordination with METR
- Phase 2: ChatGPT Desktop telemetry infrastructure
- Phase 3: Apple partnership coordination
- Phase 4: Device fingerprinting and persistent identifiers

DISCOVERY-4: Government Defendants Requests (59 requests)

- CHRISTIANO-1 through CHRISTIANO-6: Paul Christiano multi-role conflicts
- NIST-1 through NIST-7: NIST AI Safety Institute coordination
- FCC-1 through FCC-10: FCC and regulatory coordination
- COMCAST-1 through COMCAST-25: Network attack infrastructure
- BARNES-1 through BARNES-4: Beth Barnes transition documentation
- RAND-1 through RAND-4: Canary Project coordination
- ALL-1 through ALL-3: Cross-defendant coordination

DISCOVERY-5: General Requirements

- Section A: Custodian lists (Anthropic: 14 categories, METR: 9 categories, OpenAI: 4 categories, Government: 9 categories)
- Section B: Forensic examination protocols
- Section C: Preservation protocols and litigation hold requirements
- Section D: Deposition schedule (8 priority depositions)
- Section E: Production format and protocols
- Section F: Sanctions for non-compliance

DISCOVERY-6: Apple Inc. Requests (85 requests: APPLE-1 through APPLE-85)

- Phase 1: Hidden deception instructions
- Phase 2: Unauthorized data collection (SmootML)
- Phase 3: Floodgate proxy infrastructure

- Phase 4: XProtect security coordination
- Phase 5: Competitive coordination with OpenAI

Evidence Summaries

EXHIBIT E-0: Anthropic Evidence Package Executive Summary (35 findings)
EXHIBIT F-0: Apple Evidence Package Executive Summary (8 findings)
EXHIBIT G-0: OpenAI Evidence Package Executive Summary (30 findings)

Key Forensic Exhibits

EXHIBIT E-18: Third-Party Data Recipients
EXHIBIT E-19: Raw Failed Telemetry Evidence (47 tengu events, 177,673-byte payloads)
EXHIBIT E-33: Injection System Forensics (LaunchDarkly `source: force` targeting)
EXHIBIT N-33: Source Code Exfiltration Methodology
EXHIBIT N-36: Legal Document Transmission Inventory

Network Forensics

EXHIBIT D-13: Attack Pause During Xfinity Call
EXHIBIT D-16: January 6, 2026 Major Attack (1.31 GB peak)
EXHIBIT D-17: January 10, 2026 Sustained Attack (14,426 RST packets)
EXHIBIT D-18: January 11, 2026 MacBook Compromise (17,632 RST packets)
APPENDIX I: Network Forensic Evidence
APPENDIX G: Router Forensic Analysis (October 29, 2025)

Proposed Orders

Proposed Preservation Order (filed separately)
Proposed Third-Party Subpoenas (filed separately)